IN THE COURT OF APPEAL OF THE STATE OF CALIFORNIA
FOURTH APPELLATE DISTRICT, DIVISION THREE

REDACTED,

Appellant,

v.

Court of Appeal Case No. REDACTED

REDACTED

Respondent.

APPEAL FROM ORANGE COUNTY SUPERIOR COURT
Case No. REDACTED

MOTION TO AUGMENT RECORD ON APPEAL; MEMORANDUM OF POINTS AND AUTHORITIES

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MOTION TO AUGMENT RECORD ON APPEAL

Pursuant to California Rules of Court, rule 8.155(a), respondent requests that this court augment the record to include: (1) the attached reporters' transcripts of the August 18, 19, and 22, 2016, hearings concerning request for a domestic violence restraining order (DVRO); (2) the attached reporters' transcripts of the February 20, 21, and 22, 2018, hearings concerning request to move away and request to terminate DVRO; and (3) eight documents not designated in the clerk's transcript and two documents included in the clerk's transcript that are not legible.

This motion is based on the attached memorandum of points and authorities, the declaration of Megan S. Wilson, the appellant's opening brief, the concurrently filed respondent's brief, and the existing record on appeal in this case.

MEMORANDUM OF POINTS AND AUTHORITIES

The record on appeal may be augmented by motion to include "[a]ny document filed or lodged in the case in superior court" or a "certified transcript . . . of oral proceedings." (Cal. Rules of Court, rule 8.155(a)(1)(A)-(B).) "The function of the augmentation procedure is to supplement an incomplete but existing record [citation], and the rule is to be construed liberally." (*People v. Brooks* (1980) 26 Cal.3d 471, 484; see 9 Witkin, Cal. Procedure (5th ed. 2008) Appeal, § 683, p. 753 ["The power [to augment the record] should be liberally exercised"].) We refer to the parties by their first names as is customary in cases involving two parties with the same last name.

The rule allowing augmentation enables the Court of Appeal to determine the issues before it by using the record that was before the trial court below. (See *Lipka v. Lipka* (1963) 60 Cal.2d 472, 480.)

On appeal, appellant challenges the trial court's decision to renew a DVRO against him to protect his ex-wife and that her apprehension of him is genuine, despite repeated findings by the trial court to the contrary. (AOB 11, 14.) Additionally, appellant argues: (1) substantial evidence did not support the renewal of the DVRO, (2) the trial court applied the incorrect legal standard when granting the renewal, and (3) the trial court abused its discretion by relying on the prior findings in the case. (AOB 5, 10, 13.) In support of his arguments on appeal, appellant selectively designated and cited the evidence in the case, ignoring the many facts supporting the trial court's decision. This motion to augment the record seeks to fill in the gaps omitted by appellant to show that the trial court was well within its discretion to renew the DVRO.

On October 22, 2019, appellant filed a notice of appeal and elected to proceed on appeal with a clerk's transcript. (Declaration of Megan S. Wilson ¶ 2.) Respondent, proceeding pro se, sought and was granted three extensions to file her respondent's brief. (Wilson Decl. ¶ 3.) The final extension required respondent to file her brief by October 9, 2020. (Ibid.) On September 16, 2020, Horvitz & Levy LLP associated into the case as pro bono counsel. (Wilson Decl. ¶ 4.) In acknowledgement of the time required to review the record and draft a respondent's brief, the court granted respondent an extension on September 22, 2020, allowing her to file her brief by November 9, 2020. (See ibid.)

As part of counsel's review of the issues and record, counsel has identified additional items in the record which appellant had not previously

identified or cited in his opening brief and which respondent, while proceeding pro se, did not timely designate. With this motion, respondent seeks to augment the reporter's transcript portion of the record to include the August 18, 19, and 22, 2016, reporters' transcripts of hearings on appellant's request for a domestic violence restraining order (see Wilson Decl., exh. A, pp. 3-94; exh. B, pp. 96-246; exh. C, pp. 248-360) and the February 20, 21, and 22, 2018, reporters' transcripts of the hearings concerning appellant's request to move away and appellant's request to terminate the DVRO (see Wilson Decl., exh. D, pp. 362-452; exh. E, pp. 454-634; exh. F, pp. 636-734).

This motion also seeks to augment the record with additional documents not designated in the clerk's transcript: request for a temporary restraining order and domestic violence restraining order and accompanying documents filed on July 28, 2016, which was incomplete in the clerk's transcript (see Wilson Decl., exh. G, pp. 737-771); declaration in support of his DVRO opposition (see Wilson Decl., exh. H, pp. 773-794); the third, fourth, and fifth amended DVRO (see Wilson Decl., exh. I, pp. 797-808; exh. J, pp. 810-832; exh. O, pp. 1023-1039); request for a move-away order (see Wilson Decl., exh. K, pp. 834-895); request seeking termination of the DVRO (see Wilson Decl., exh. L, pp. 898-920); and request for a temporary emergency order (see Wilson Decl., exh. M, pp. 922-972). This motion to augment also contains two documents that were included but not legible in the clerk's transcript: the court's ruling on submitted matter and order (see Wilson Decl., exh. N, pp. 974-1021) and request to renew the restraining order (see Wilson Decl., exh. P, pp. 1041-1077). (See Cal. Rules of Court, rule 8.144(b)(2)(B) ["The text must be reproduced as legibly as printed matter"].)

Given appellant's obligation as appellant to provide a complete record and the relevance of these materials to the issues he raises on appeal, these are all hearings and filings that should have been included in his original designation of record. Therefore, good cause exists to grant augmentation because these documents and transcripts are relevant to the questions of whether the trial court applied the correct legal standard and whether the renewal was supported by substantial evidence. (See, e.g., AOB 5.) In particular, these documents help demonstrate, among other things, the underlying orders contain substantial evidence to support the DVRO renewal, the circumstances supporting the original DVRO have not changed, appellant remains hostile to respondent and failed to meet his burden on appeal to adequately present all evidence supporting the trial court's decision. Moreover, the record on appeal does not include transcripts and documents expressly relied on by the trial court in renewing the DVRO. (See 1 CT 79; Wilson Decl. ¶¶ 7-23, exhs. A-P; Wilson Decl. ¶ 14 [for example, this motion includes an exhibit with a declaration from appellant which was not included in clerk's transcript, but which the trial court relied on].) The documents would therefore provide this court with a more complete view of the issues raised by the appeal.

Moreover, there is also good cause for the delay in filing this motion. Counsel has been working diligently to prepare the respondent's brief since association on September 16, 2020. (Wilson Decl. ¶¶ 4-5.) Because respondent designated the record prior to counsel's association, counsel was required to first review the record actually designated in a brief period of time. (Wilson Decl. ¶¶ 2, 5.) Counsel then had to order and review all of the additional relevant documents filed in the trial court and additional hearing transcripts not

previously designated as part of the record, as well as research and draft the responding brief. (Wilson Decl. ¶ 5.) Only after recently completing this process was counsel able to identify relevant and necessary documents, which were excluded from the clerk's transcript, and hearing transcripts that were not previously submitted to the court. (Ibid.) There is thus good cause to file this motion to augment at this time.

Finally, appellant will not be prejudiced by augmenting the record at this time to include these documents. (See *In re A.B.* (2008) 164 Cal.App.4th 832, 840 ["Since [respondent] filed its motion to augment on the same date it filed its respondent's brief, [petitioner] had plenty of time to reply and suffered no prejudice"].) It is appellant's burden to provide a sufficient record to put the challenged rulings in context. (See *Foreman & Clark Corp. v. Fallon* (1971) 3 Cal.3d 875, 881.) He did not do so. Instead, appellant selectively included documents in the record to support his one-sided narrative which fails to take into account that the complete record must be examined in the light most favorable to the judgment. He thus has no basis to complain when the respondent provides a complete record of the trial court proceedings.

For the foregoing reasons, respondent respectfully requests that the record on appeal be augmented to include the attached transcripts and the additional relevant documents.

Dated: November 9, 2020

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